ARTUR PERICLES L. MONTEIRO • artur.monteiro@yale.edu • www.arturpericles.art

New Haven, CT, February 23, 2026

Freedom of Expression Scholars Conference
Yale Law School

Dear colleagues:

Thank you very much for reading my paper! FESC is my favorite conference— I am so excited to see you and join your sessions!

This paper is in very rough form, so I particularly appreciate your engagement despite that. The main reason for the sketchiness is that this paper grew out of another project, my *Platform Federalism: How to Countervail Power*, 41 BERKELEY TECH. L.J. (forthcoming 2026). The problem is that it was too long and not well-integrated into that project. It is now too short and barely standing on its own!

If you can look past that, here are some questions I would like to share with you:

- My doctrinal goal is reconciliation. I am under the illusion that I can make *Buckley* be less of the *Lochner* redux we dread. This draft doesn't do it, but I believe *Buckley* can be restated less outrageously if we read both elements of its infamous principle—"government may [not] (1) restrict the speech of some elements of our society (2) in order to enhance the relative voice of others"—as standing screening for self-dealing and favoritism. Is this walking a beaten path? Does it sound plausible?
- I don't analyze horizontal and vertical interoperability under the theory I put forward. I know this will be frustrating! So, if you will humor my speculation, I think unbundling is likely to be safer than horizontal interoperability. Essentially, platforms are few, so the virtues of generality might not apply. There might be sense in this. For instance, the Utah interoperability mandate seems to have been drafted by an organization that itself designed a protocol and stands to gain directly. In unbundling, middleware providers are likely to be diffuse, thus mitigating risks to the independence of public opinion. So interoperability might be closer to *PG&E*, and unbundling closer to *PruneYard* and *Turner*.

I welcome all your feedback—truly. Many thanks again! Looking forward to our conversation.

With kindness,

Art

Enclosure:

1. *Platform Interoperability and the First Amendment* (draft, Apr. 20, 2026).

XIV Freedom of Expression Scholars Conference

Platform Interoperability and the First Amendment

ARTUR PERICLES L. MONTEIRO
Yale Jackson School of Global Affairs & Yale Law School

Following *Moody v. NetChoice*, commentators have paid renewed attention to reforms focused on unbundling social media platforms. Proposals require interoperability with third-party recommender systems ("middleware") and other social media platforms. Such requirements would address concerns about manipulation and concentration of power over the public sphere. Yet scholars have long noted First Amendment doctrine opposes redistribution. Indeed, in *Buckley*, the Court famously insisted that "[t]he concept that government may restrict the speech of some elements of our society in order to enhance the relative voice of others is wholly foreign to the First Amendment." While commentators have been optimistic that unbundling would pass First Amendment scrutiny, doctrinal work is required, unless *Buckley* is abandoned. And, while *Buckley* has been denounced as a mistake since it was handed down, the Court gives no indication that it will abandon it. The *Moody* majority relied on *Buckley* explicitly when it identified the invalid interest pursued by the Texas law.

This Article offers doctrinal reconciliation. It argues that structural regulation for social media that redistributes expressive power while steering clear of favoritism, hostility, or self-dealing will be subject to heightened scrutiny—and should withstand it. Drawing on Justice Kagan's pre-Court scholarship, the Article reinterprets *Buckley* as an evidentiary heuristic for detecting improper government motive rather than a categorical bar on redistribution. It then reexamines the editorial rights cases on which *Moody* relies—*Tornillo*, *PG&E*, *PruneYard*, *FAIR*, and *Turner*—to show how concerns about government control over public discourse, not redistribution as such, explain their outcomes. What emerges is a doctrinal margin for unbundling reforms: interoperability requirements that diffuse communicative power without empowering the state to advance "its own vision of ideological balance."

INTRODUCTION 3
I. PLATFORM INTEROPERABILITY 4
II. *MOODY* AND PLATFORM POWER 5
A. Unequivocal Coverage, Uncertain Protection 5
B. Coverage "If, *Though Only If*, the Regulated Party Is Engaged in Expressive Activity" (But Also if It Is Not?) 7
C. Coverage and Protection for "Heartland" Social Media Content Moderation: What Is the Invalid Interest? 11
III. THE *BUCKLEY* PRINCIPLE AND SPEECH REDISTRIBUTION 12
A. Beyond Categorical Bars on Redistribution 13
B. The *Buckley* Principle as a Proxy for Neutrality 14
C. Self-Dealing and Favoritism Invalidating Speech Redistribution 16
D. Diffuse Effects Sustaining Redistribution 18
E. "Expressivity" Is Question-Begging 19
IV. STRUCTURAL REGULATION IN *TURNER* AND *MOODY*'S "SPEECH NIRVANAS" 21
A. Neutrality Analysis in *Turner* Confirms *Buckley* Principle as Proxy 21
B. Broadcasting and Speech Nirvanas 23
C. Invalid Interests Under *Moody* Revisited 25
CONCLUSION 27

INTRODUCTION

Platform interoperability is an emerging approach to respond to the concentration of private power in the hands of the "new governors".[1] This strand of social media reform emphasizes bringing competition into platforms' walled gardens instead. This competition could be introduced through interoperability, horizontal or vertical.[2] Horizontal interoperability (often simply "interoperability") applies to different platforms. Instagram is interoperable with Facebook and Threads, but not with TikTok. Vertical interoperability is within the platform. Other terms are middleware and unbundling. Though neither has been tested as of yet, state regulation has explored both horizontal and vertical interoperability. Utah passed the Digital Choice Act, requiring horizontal interoperability. Former Missouri Attorney General Andrew Bailey drafted a platform unbundling requirement under state unfair and deceptive practices authority, although the proposed rule was eventually withdrawn.

Platform unbundling would allow users to benefit from their extensive social networks present on dominant platforms such as Facebook without permitting concentrated power over the public sphere. Reformers would thus disaggregate platform functions: crucially, content hosting is unbundled from curation and moderation, "the editorial layer", which would be done by middleware.[3] Where today users have only the options created by the platform itself, middleware would allow third-party providers to offer options to users. This proposed reform also seeks to empower users,[4] but it pursues that by creating a marketplace, "stimulating the creation of a competitive layer of companies offering middleware products."[5]

A proposal that seeks to redistribute speaking power has some doctrinal explaining to do. The Roberts Court endorses a concept of freedom of speech as liberty which is thought to treat such government efforts "as cardinal First Amendment sins."[6] And *Moody* seemed to confirm this when it repudiated the Texas statute on the grounds that the government "cannot prohibit speech to improve or better balance the speech market."[7] The majority went further and repeated that "the government may not 'restrict the speech of some elements of our society in order to

1 *Cf.* Kate Klonick, *The New Governors: The People, Rules, and Processes Governing Online Speech*, 131 HARV. L. REV. 1598, 1663 (2018) (introducing "new governors" as a descriptor that "captures the power and scope these private platforms wield through their moderation systems and lends gravitas to their role in democratic culture").

2 *See* Przemysław Pałka, *The World of Fifty (Interoperable) Facebooks*, 51 SETON HALL L. REV. 1193, 1229 (2020) (defining horizontal and vertical interoperability); Herbert Hovenkamp, *Antitrust and Platform Monopoly*, 130 YALE L.J. 1952, 2020–38 (2021).

3 FRANCIS FUKUYAMA ET AL., CYBER POL'Y CTR. & CTR. ON PHILANTHROPY & CIV. SOC'Y, STANFORD UNIV., REPORT OF THE WORKING GROUP ON PLATFORM SCALE 30 (2020), https://pacscenter.stanford.edu/wp-content/uploads/2020/11/platform_scale_whitepaper_-cpc-pacs.pdf.

4 *See* LUKE HOGG & RENÉE DIRESTA, FOUND. FOR AM. INNOVATION & TECH & PUB. POL'Y AT MCCOURT SCH. OF PUB. POL'Y, GEORGETOWN UNIV., SHAPING THE FUTURE OF SOCIAL MEDIA WITH MIDDLEWARE 11 (2024), https://www.thefai.org/posts/shaping-the-future-of-social-media-with-middleware.

5 FUKUYAMA ET AL., *supra* note 3, at 30; *see* Ethan Zuckerman & Isaac Brickman, *Improving Social Media with Middleware*, 715 ANNALS AM. ACAD. POL. & SOC. SCI. 99, 101 (2024) ("[M]iddleware is a market-based solution . . . ."); *but see* Caleb Malchik & Joan Feigenbaum, *Toward User Control over Information Access: A Sociotechnical Approach*, 2022 PROC. NEW SEC. PARADIGMS WORKSHOP 117, 127 (proposing member-funded data co-ops for a client-side discovery tool).

6 Kathleen M. Sullivan, *Two Concepts of Freedom of Speech*, 124 HARV. L. REV. 143, 158 (2010).

7 Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2407 (2024).

enhance the relative voice of others.' "[8] That phrasing, abbreviated as "*Buckley*'s anti-redistributive principle,"[9] sounds dooming to proposals for platform interoperability and platform unbundling. So commentators have good reason to doubt that *Moody* will "protect speech or equality interests against the arbitrary exercise of platform power."[10]

This Article nevertheless shows that there is a viable path for diffusing platform power. It reads the *Buckley* principle as a proxy for content neutrality in speaking power redistribution. That path is revealed if we pay close attention to what perturbs the Court when it invalidates speaking power redistribution. Preeminent scholars are right to say that the Court is highly suspicious about redistribution.[11] But while this certainly does not belie the Lochner laissez-faire charges that have been leveled against First Amendment doctrine,[12] there is more room for redistribution than commentary has thus far recognized.

I. PLATFORM INTEROPERABILITY

An emerging approach to social media reform emphasizes bringing competition into platforms' walled gardens instead. This competition could be introduced through interoperability, horizontal or vertical.[13] Such avenues are also presented in terms of countervailing power.

Horizontal interoperability (often simply "interoperability") applies across platforms.[14] Instagram is interoperable with Facebook and Threads, but not with TikTok. Vertical interoperability is within the platform. Other terms are middleware and unbundling.

Platform unbundling would allow users to benefit from their extensive social networks present on dominant platforms such as Facebook without permitting concentrated power over the public sphere. Reformers would thus disaggregate platform functions: crucially, content hosting is unbundled from curation and moderation, "the editorial layer", which would be done by middleware.[15] Where today users have only the options created by the platform itself, middleware

[8] *Moody*, *id.* at 2407, 2425 (quoting Buckley v. Valeo, 424 U.S. 1, 48–49 (1976)).

[9] Elena Kagan, *Private Speech, Public Purpose: The Role of Governmental Motive in First Amendment Doctrine*, 63 U. CHI. L. REV. 413, 465 (1996).

[10] Evelyn Douek & Genevieve Lakier, *Lochner.com?*, 138 HARV. L. REV. 100, 166 (2024).

[11] *Cf.* Sullivan, *supra* note 6; Genevieve Lakier, *Imagining an Antisubordinating First Amendment*, 118 COLUM. L. REV. 2117 (2018); Genevieve Lakier, *The Non-First Amendment Law of Freedom of Speech*, 134 HARV. L. REV. 2299 (2021).

[12] *See* Amanda Shanor, *The New* Lochner, 2016 WIS. L. REV. 133, 183–92 (2016); Jeremy K. Kessler & David E. Pozen, *The Search for an Egalitarian First Amendment*, 118 COLUM. L. REV. 1953, 1962–64 (2018); *but see* Genevieve Lakier, *The First Amendment's Real* Lochner *Problem*, 87 U. CHI. L. REV. 1241 (2020) (identifying that *Lochner* laissez-faire not in the expansion of the scope of the First Amendment but in doctrinal indifference to material inequality).

[13] *See* Pałka, *supra* note 2, at 1229 (defining horizontal and vertical interoperability); Hovenkamp, *supra* note 2, at 2020–38.

[14] *See* Fiona M. Scott Morton et al., *Equitable Interoperability: The "Supertool" of Digital Platform Governance*, 40 YALE J. ON REGUL. 1013, 1028–35 (2023) (proposing an interpretability mandate for social media).

[15] FUKUYAMA ET AL., *supra* note 3, at 30.

would allow third-party providers to offer options to users. This proposed reform also seeks to empower users,[16] but it pursues that by creating a marketplace, "stimulating the creation of a competitive layer of companies offering middleware products."[17]

States have recently both horizontal and vertical interoperability. Utah's Digital Choice Act amended the state's privacy legislation on data portability to include an interoperability requirement, effective July 1, 2026.[18]

In Missouri, former Missouri Attorney General Andrew Bailey issued a notice for public comment on a proposed rule to make it a violation of the state's unfair and deceptive practices legislation "to operate a social media platform . . . unless the social media platform permits users the opportunity to select a third-party content moderator of their choice rather than rely on the content moderation provided directly by the social media platform."[19] Two think tanks and the industry group NetChoice vehemently opposed the rulemaking, asserting that it contradicted the Supreme Court's decision in *Moody v. NetChoice*.[20] The Attorney General Bailey withdrew the proposed rule before he resigned to assume a position in the Department of Justice; the order of withdrawal noted only negative comments but disclaimed that he did so "not due to comments suggesting he lacks legal authority to issue the rule."^[[50 MO. REG. 1717 (Nov. 17, 2025).]

II. *MOODY* AND PLATFORM POWER

A. Unequivocal Coverage, Uncertain Protection

What the *Moody* opinion means for the regulation of social media is not settled. Formally, the Court held that both the Fifth and the Eleventh Circuits incorrectly assessed the facial challenges industry group NetChoice mounted.[21] Yet a majority also "set out the relevant constitutional

[16] *See* HOGG & DIRESTA, *supra* note 4, at 11.

[17] FUKUYAMA ET AL., *supra* note 3, at 30; *see* Zuckerman & Brickman, *supra* note 5, at 101 ("[M]iddleware is a market-based solution . . . ."); *but see* Malchik & Feigenbaum, *supra* note 5, at 127 (proposing member-funded data co-ops for a client-side discovery tool).

[18]

> (1) A social media company shall implement a transparent, third-party-accessible interoperability interface or interfaces to allow users to choose to:
>
> (a) share a common set of the user's personal data between the social media services designated by the user; and
>
> (b) enable third parties to access content created by the user and to be notified when new or updated content is available, with the user's permission.

UTAH CODE ANN. § 13-81-202 (West 2025).

[19] 50 MO. REG. 854 (June 16, 2025).

[20] Future of Free Speech, Comments on the Rule 15 CSR 60-19 Proposed by the Attorney General of Missouri (July 14, 2025); TechFreedom, Comments In the Matter of Prohibition on Restricting Choice of Content Moderator 15 CSR 60-19.020 (July 16, 2025); NetChoice, Comment Letter on Proposed Rule 15 CSR 60-19 Proposed by the Attorney General of Missouri (July 16, 2025).

[21] Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2397 (2024) (quoting 599 U.S. 762, 770 (2023) (articulating the standard for a facial challenge as whether a law "prohibits a substantial amount of protected speech relative to its plainly legitimate sweep"). *Cf. id.* (first citing United States v. Salerno, 481 U.S. 739, 745 (1987); then citing Washington State Grange v. Washington State Republican Party, 552 U.S. 442, 449, 450-451 (2008); and then citing Americans for Prosperity Foundation v. Bonta, 594 U.S. 595, 615 (2021)).

principles" for the lower courts on remand.[22] Though the concurrence in the judgment by Justice Alito protested this as unnecessary and unjustified,[23] the majority was convinced that the Fifth Circuit had rested on such a "serious misunderstanding" that guidance was warranted.[24]

This guidance takes separately the questions of whether the conduct in question is within the scope (or coverage[25]) of the First Amendment and what protection it should receive.[26] The majority is categorical in dispelling arguments that would indiscriminately place social media outside of the coverage of the First Amendment. But it did not specify what level of protection it should be afforded.

Coverage was a central question in *Moody* because the lower courts had split at that threshold question: whether content moderation was speech or not.[27] Justice Kagan's majority opinion unequivocally rebukes the Fifth Circuit's reasoning, which would have concluded First Amendment scrutiny at the threshold question of whether content moderation counts as "speech."[28] The Supreme Court's guidance is clear that platforms' activities are covered by the First Amendment when a requirement to provide a forum interferes or disturbs their "own expressive activity," which content curation and moderation qualify as.[29] Yet that platforms would make it through the threshold of coverage should not have come as any surprise.[30] As Schauer explains, the question of coverage—Is it speech?—, while often complex and nuanced, can be posed more directly:

22 *Id.* at 2394.

23 *Id.* at 2422 (Alito, J., concurring in the judgment); *see also id.* at 2412 (Jackson, J., concurring in part and concurring in the judgment) (counseling "restraint" about pronouncements about "potential rulings on the merits").

24 *Moody*, 144 S.Ct. at 2399 (majority opinion); *cf.* Eric Goldman, *Speech Nirvanas on the Internet: An Analysis of the U.S. Supreme Court's* Moody v. NetChoice *Decision*, 2023–2024 CATO SUP. CT. REV. 125 (2024) (arguing that the opinion "is a major First Amendment precedent," no matter what is said about dicta status).

25 *See* Frederick Schauer, *The Boundaries of the First Amendment: A Preliminary Exploration of Constitutional Salience*, 117 HARV. L. REV. 1765, 1769–74 (2004). *See also* Mark Tushnet, *The Coverage/Protection Distinction in the Law of Freedom of Speech: An Essay on Meta-Doctrine in Constitutional Law*, 25 WM. & MARY BILL RTS. J. 1073, 1077–83 (2017) (tracing the distinction back to Chaplinsky v. New Hampshire, 315 U.S. 568 (1942) and Valentine v. Chrestensen, 316 U.S. 52 (1942)). *See generally* Frederick Schauer, *Categories and the First Amendment: A Play in Three Acts*, 34 VAND. L. REV. 265 (1981). *Cf.* Amanda Shanor, *First Amendment Coverage*, 93 N.Y.U. L. REV. 318, 326 (2018) ("The boundaries of the First Amendment—the leading edge of coverage—have . . . changed significantly over time.").

26 *See Moody*, 144 S.Ct. at 2403–06 (addressing coverage); *Moody*, *id.* at 2407–09 (discussing protection). The demarcation is clearly stated in the following two sentences, *Moody*, *id.* at 2406–07: "[Platforms] receive First Amendment protection. And once that much is decided, the interest Texas relies on cannot sustain its law."

27 *Compare* NetChoice, L.L.C. v. Paxton, 49 F.4th 439, 459 (5th Cir. 2022) ("The First Amendment protects speech . . . . The Platforms are not newspapers. Their censorship is not speech.") *with* NetChoice, LLC v. Att'y Gen., Fla., 34 F.4th 1196, 1212 (11th Cir. 2022) ("[D]ecisions about whether, to what extent, and in what manner to disseminate third-party-created content to the public are editorial judgments protected by the First Amendment.").

28 *See Moody*, 144 S.Ct. at 2399 ("The Fifth Circuit was wrong in concluding that Texas's restrictions on the platforms' selection, ordering, and labeling of third-party posts do not interfere with expression.")

29 *See id.* at 2399–400.

30 *Cf.* Blake E. Reid, NetChoice *and Telecom Law's First Amendment*, 59 U.C. DAVIS L. REV. (forthcoming 2026) (manuscript at 68) (on file with the author) (observing that "the canon of telecom law" shows that the threshold of coverage is almost inevitably satisfied in this domain).

Is this a free speech dispute?[31] Given how Florida and Texas have sought to regulate platforms used by hundreds of millions to communicate, it would be in fact surprising if the Court were to say that it did *not* have a free speech dispute before it.[32]

B. Coverage "If, *Though Only If*, the Regulated Party Is Engaged in Expressive Activity" (But Also if It Is Not?)

From that perspective, the Fifth Circuit's conclusion that "[p]latforms' censorship is not speech under the First Amendment",[33] even if were true, could not have justified its ruling that the First Amendment was not implicated and its overlooking of Texas' attempt to "to advance its own vision of ideological balance . . . [and] 'tilt[] public debate in a preferred direction.' "[34] The Supreme Court's guidance is clear that platform content moderation is speech and hence covered by the First Amendment when a requirement to provide a forum interferes or disturbs platforms' "own expressive activity."[35] Yet, although the majority seemingly expresses a necessary condition for coverage when it states that the First Amendment is implicated "if, though only if, the regulated party is engaged in its own expressive activity,"[36] that condition must be read narrowly as applying to the analysis of the regulated party's interests in cases raising "the question whether ordering a party to provide a forum for someone else's views."[37]

The language of this condition in the majority opinion can be interpreted against the backdrop of the long-standing debate about doctrinal problems in First Amendment coverage with respect to commercial speech. Critics have described the Court's current approach to commercial speech as undermining free speech values.[38] They have contended it extends the scope of the constitutional right to opportunistic claimants;[39] especially with regard to compelled speech,[40] scholars argue that the Court's current approach would allow businesses to subject to First Amendment scrutiny everything from security disclosure statements to tax returns.[41] Clearly, *Moody* was a different sort of case, yet the question of coverage here could have vexed the majority opinion,

[31] Frederick Schauer, *What Is Speech? The Question of Coverage*, *in* THE OXFORD HANDBOOK OF FREEDOM OF SPEECH 171 (Adrienne Stone & Frederick Schauer eds., 2021) ("Beneath the language and complexities of the question of coverage, and apart from the misleading question, 'what is speech?', is a much simpler question that is necessarily the first question always to be asked—'is this a free speech dispute?'. The question of coverage is this question.").

[32] *See* Douek & Lakier, *supra* note 10, at 130.

[33] NetChoice, L.L.C. v. Paxton, 49 F.4th 439, 466 (5th Cir. 2022), *vacated and remanded sub nom. Moody*, 144 S.Ct.

[34] *Id.* at 2407 (quoting Sorrell v. IMS Health Inc., 564 U.S. 552, 578–579 (2011)).

[35] *See id.* at 2399–400.

[36] *Id.* at 2400.

[37] *Id.* at 2399.

[38] *Cf.* C. Edwin Baker, *Commercial Speech: A Problem in the Theory of Freedom*, 62 IOWA L. REV. 1, 3 (1975) ("[A] complete denial of [F]irst [A]mendment protection for commercial speech is not only consistent with, but is required by, [F]irst [A]mendment theory." (footnote omitted)).

[39] *See*, *e.g.*, Leslie Kendrick, *First Amendment Expansionism*, 56 WM. & MARY L. REV. 1199 (2015); Robert Post & Amanda Shanor, *Adam Smith's First Amendment*, 128 HARV. L. REV. F. 165 (2015).

[40] Steven H. Shiffrin, *What Is Wrong with Compelled Speech?*, 29 J. L. & POL. 499, 515 (2014) ("Most disturbing is the view that large business corporations can receive the autonomy protections afforded to school children and media corporations even when listeners' rights are undermined."); Robert Post, *Compelled Commercial Speech*, 117 W. VA. L. REV. 867 (2015) ("Conscripting the First Amendment to an anti-regulatory agenda would be a grave constitutional abuse.").

[41] *See* Shanor, *supra* note 12, at 179.

which is joined by Justices who have been on opposing sides of the debate about commercial speech.[42] What this majority agreed on can be regarded as a compromise that disentangles its opinion from that discord but one that articulates the First Amendment trigger in terms that commentators have characterized as formalistic.[43]

This is not to say that the "engaged in its own expressive activity" condition does no work. For instance, years before *Moody*, one commentator wondered whether the "editorial rights" of grocery stores would be protected by the First Amendment with respect to the organization of their wares, which often reflect consumer behavior science-based decisions for having "certain brands at eye level" or "candy near the checkout."[44] The guidance provided by the *Moody* majority avoids this charade, at least as long as we agree that store layout is not an "expressive activity," despite the fact that the underlying decision-making is deliberately designed to influence customers.

Yet First Amendment coverage may exist even when the regulated party is *not* "engaged in its own expressive activity."[45] A good explanation of why that is true is offered by those who strongly opposed the platforms' First Amendment rights. For instance, Tim Wu identified a functionality doctrine in the First Amendment and argued that the activities of search engines were not covered speech. But he still concluded that First Amendment scrutiny would apply were the government to order "search engines to block results linking to information it deemed treasonous or a threat to national security."[46] Similarly, Pauline Trouillard took the view that social media platforms are not speakers but that did not prevent her from emphasizing First Amendment protections against content-based restrictions and regulation that reflects viewpoint discrimination.[47] To add another hypothetical to the list, even the grocery store could pose a First Amendment question if the government were, for instance, to mandate how particular magazines be placed. Such hypotheticals are made real by the facts in *Lamont v. Postmaster General*, in which the Court struck down detention of mail designated as "communist political propaganda" unless the addressee affirmatively requested receipt.[48] Although the Court there sidestepped a substantive discussion and the decision did not characterize the legislation as content-based or viewpoint discrimination (coming as it did before content neutrality became central to First

[42] *See*, *e.g.*, NIFLA v. Becerra, 585 U.S. 755, 768 (2018) (Thomas, J., joined by Roberts, C.J., Kennedy, Alito, and Gorsuch, JJ.; *id.* at 785, 794 (Breyer, J., dissenting, joined by Ginsburg, Sotomayor, and Kagan, JJ.); 303 Creative LLC v. Elenis, 600 U.S. 570, 596 (2023) (Gorsuch, J., joined by Roberts, C.J., Thomas, Alito, Kavanaugh, and Barrett, JJ.); *id.* 625-26 (Sotomayor, J., dissenting, joined by Kagan and Jackson, JJ.).

[43] Douek & Lakier, *supra* note 10, at 162; Kyle Langvardt & Alan Z. Rozenshtein, *Beyond the Editorial Analogy: First Amendment Protections for Platform Content Moderation After* Moody v. NetChoice, 6 J. Free Speech L. 1, 32 (2025).

[44] Heather Whitney, *Search Engines, Social Media, and the Editorial Analogy*, *in* The Perilous Public Square: Structural Threats to Free Expression Today 122 (David E. Pozen ed., 2020).

[45] *Contra* Eugene Volokh, *Free Speech and Private Power*, 138 Harv. L. Rev. F. 43, 55 (2024) ("[U]nder *Moody*, compulsions to carry speech are unconstitutional 'if, though *only if*, the regulated party is engaged in its own expressive activity, which the mandated access would alter or disrupt.' ") (quoting Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2400 (2024)) .

[46] Tim Wu, *Machine Speech*, 161 U. Pa. L. Rev. 1495, 1530 (2013).

[47] Pauline Trouillard, *Social Media Platforms Are Not Speakers. Why Are Facebook and Twitter Devoid of First Amendment Rights?*, 19 Ohio St. Tech. L.J. 257, 308 (2023) (discussing hypothetical requirements to suppress speech related to cats and speech stating a preference for hats over *chapeaux* as unconstitutional content-based restrictions and viewpoint discrimination, respectively).

[48] Lamont v. Postmaster Gen., 381 U.S. 301 (1965).

Amendment jurisprudence[49]), *Lamont* still shows how freedom of speech scrutiny does not end once a determination is made that the regulated entity, like the mail, is not engaged in "its own expressive activity."[50]

Even regulation of *unprotected* speech is subject to First Amendment scrutiny, and discrimination within categories of unprotected speech can lead to invalidation.[51] As such, the question of whether there is a speaker who holds First Amendment rights,[52] or whether there is *a speaker at all*,[53] while relevant, is not dispositive. In fact, support for the proposition that First Amendment coverage is not precluded by a finding that a regulated entity is not "engaged in its own expressive activity" is offered by *Reno v. ACLU*, where the Court invalidated provisions of the Telecommunications Act of 1996 which criminalized knowingly transmitting obscene or indecent material to recipients under the age of 18.[54] The majority concluded the provisions were impermissible content-based restrictions given their effects on adult users.[55] It did not matter to either the majority or the dissent that internet service providers and caching servers are not "engaged in [their] own expressive activity,"[56] or whether operators of "e-mail, mail exploders, newsgroups, or chat rooms" were.[57]

[49] *See* Geoffrey R. Stone, *Content Regulation and the First Amendment*, 25 Wm. & Mary L. Rev. 189, 189 (1983) (noting content neutrality analysis gained prominence in the 1970s). *Cf* Police Dep't v. Mosley, 408 U.S 92, 95 (1972) ("[A]bove all else, the First Amendment means that government has no power to restrict expression because of its message, its ideas, its subject matter, or its content"). *See generally* Jud Campbell, *The Emergence of Neutrality*, 131 Yale L.J. 861, 936–43 (2021) (contending content neutrality was a departure from historical understanding of the First Amendment); *but see* Genevieve Lakier, *A Counter-History of First Amendment Neutrality*, 131 Yale L.J. F. 873, 905 (2022) (arguing instead "some version of a neutrality rule has played an important role in free-speech law from its beginning")

[50] *Lamont* focused on the effect the detention of mail had on its intended recipients. *Lamont*, 381 U.S. at 307 ("We rest on the narrow ground that the addressee in order to receive his mail must request in writing that it be delivered."). It features centrally in listener-focused theories of the First Amendment. *See*, *e.g.*, James Grimmelmann, *Listeners' Choices*, 90 U. Colo. L. Rev. 365, 399–401 (2019). The question of restrictions on legislatively-determined foreign propaganda arose again in 2025 in the TikTok divesture case, but the Court declined to scrutinize the content-based justification and emphasized the data privacy concerns, which it described as content-neutral. *See* TikTok Inc. v. Garland, 145 S.Ct. 57, 66, 71–72 (2025) (per curiam); *but see id.* at 74 (Gorsuch, J., concurring) (expressing reservations to treating the law as content neutral); *id.* at 73 (Sotomayor, J., concurring in part) (citing *Moody* to conclude divesture requirement warranted "heightened scrutiny").

[51] *See* R.A.V. v. St. Paul, 505 U.S. 377, 388-89 (1992) (listing examples of unconstitutional discrimination within categories of unprotected speech, such as prohibiting obscene material "which includes political messages" or "threats against the President that mention his policy on aid to inner cities").

[52] *See*, *e.g.*, Kleindienst v. Mandel, 408 U.S. 753, 762, 765 (1972) (conceding that Belgian economics professor whose visa was denied had no constitutional right to enter the United States but recognizing listener rights). While *Lamont* could be cast similarly, the Court there emphasized its holding rested on the "affirmative obligation" placed upon the addressee (a description that approximates the case to compelled speech). *Cf. Lamont*, 381 U.S. at 307; *but see Lamont*, *id.* at 308 (Brennan, J., concurring) (recognizing "the right to receive publications").

[53] Leslie Kendrick, *Are Speech Rights for Speakers*, 103 Va. L. Rev. 1767, 1780–81 (2017) (listing examples or speaker-less speech such as banning a book produced by monkeys).

[54] Reno v. ACLU, 521 U.S. 844 (1997).

[55] *Id.* at 868.

[56] Internet service providers could enjoy a defense under 47 U.S.C. § 223(e)(1), but that defense was not absolute. 47 U.S.C. § 223(e)(2). *Cf.* ACLU v. Reno, 929 F. Supp. 824, 848 (E.D. Pa. 1996), aff'd, 521 U.S. 844 (1997) (discussing caching server liability).

[57] *Reno*, 521 U.S. at 876.

This question may become relevant in *Moody* on remand. For instance, the guidance provided by the majority opinion suggests that direct messaging services do not create their own expressive products,[58] as does Justice Barrett's concurrence.[59] But services like WhatsApp have policies that proscribe not just illegal use but also use that is "intimidating, harassing, hateful, racially or ethnically offensive, or instigate or encourage conduct that would be illegal or otherwise inappropriate, such as promoting violent crimes, endangering or exploiting children or others, or coordinating harm" as well as "falsehoods, misrepresentations, or misleading statements."[60] Messaging services like WhatsApp faced criticism for what commentators saw as their lack of action with respect to electoral and health misinformation its users circulated and responded by putting in place policies and measures.[*See*, *e.g.*, Gustavo Resende et al.[61] Vijaykumar.2021ds; Felipe Bonow Soares et al.[62] Azza El-Masri, Martin J Riedl & Samuel Woolley[63]] On remand, this consideration might lead courts to conclude that even messaging apps are engaged in expressive activity.

Moody contains other indications that the majority might find the fact of content moderation insufficient to characterize it as "expressive activity": it notes that while content is created by users, "the larger offering is the platform's,"[64] and that "platforms 'may' own the overall speech environment" because "users may well attribute to the platforms the messages convey *in toto*."[65] This might lead to Court to refine its position on which "compilations" are "expressive activity."[66]

Again, First Amendment scrutiny might be required even if courts do not reach that conclusion. Scholars have argued that the immunity from content moderation for "political candidates" created by the Florida law at issue in *Moody* is content-based.[67] And the district court had granted an injunction after making a preliminary finding that the legislative motivation was tainted by viewpoint discrimination.[68] As such, even if they find such services do not engage in their own expressive activity, the courts will have to consider whether the First Amendment is implicated.

[58] Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2398 (2024) ("Curating a feed and transmitting direct messages, one might think, involve different levels of editorial choice, so that the one creates an expressive product and the other does not. If so, regulation of those diverse activities could well fall on different sides of the constitutional line.").

[59] *Id.* at 2411 (Barrett, J., concurring).

[60] *WhatsApp Terms of Service*, WhatsApp (Jan. 4, 2021), https://www.whatsapp.com/legal/terms-of-service.

[61] *(Mis)information Dissemination in WhatsApp: Gathering, Analyzing and Countermeasures*, 2019 World Wide Web Conf. 818.

[62] *Research Note: Bolsonaro's Firehose: How Covid-19 Disinformation on WhatsApp Was Used to Fight a Government Political Crisis in Brazil*, 2021 Harv. Kennedy Sch. Misinfo. Rev.

[63] *Audio Misinformation on WhatsApp: A Case Study from Lebanon*, 2022 Harv. Kennedy Sch. Misinfo. Rev.

[64] Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2405 (2024).

[65] *Id.* at 2406.

[66] *See Moody*, *id.* at 2401. *But cf. Moody*, *id.* at 2430 (Alito, J., concurring) ("Because not all compilers express a message of their own, not all compilations are protected by the First Amendment."). *Cf.* Goldman, *supra* note 24, at 138 (arguing "this perceived distinction [between social media and direct messaging] may fade once the Court understands how private mes-saging services undertake extensive and socially important curatorial and trust-and-safety efforts").

[67] Ashutosh Bhagwat, *Do Platforms Have Editorial Rights?*, 1 J. Free Speech L. 97, 126 (2021). *See* Fla. Stat. § 106.072(2) (2024) (social media platforms may not "deplatform" political candidates), *id.* § 501.2041(2)(h) (content and material by or about a political candidate may not be "shadow banned" or subject to "post-prioritization").

[68] *See* NetChoice, LLC v. Moody, 546 F. Supp. 3d 1082, 1093 (N.D. Fla. 2021), *aff'd in part, vacated in part, remanded*, Fla., 34 F.4th 1196 (11th Cir. 2022), *vacated and remanded*, *Moody*, 144 S.Ct.

The more important point here, however, is that ruling on services outside of the "heartland applications" of the challenged laws on which the majority opinion focused may impact more than what seems like a lateral question in the regulation of the digital public sphere. Deciding that messaging services are outside First Amendment coverage even when they do engage in content moderation will require the Court to develop a substantive view of what the Constitution has to say about the ordering of the public sphere. As we will see below, the Court has retreated from its earlier reading of the First Amendment, which placed more importance on institutions such as the press when considering speech-restricting regulations.[69] It now instead adopts an interpretation of the Freedom of Speech and Freedom of the Press clauses that purports not to make distinctions based on the institutional role an actor plays.[70] Holding messaging services to be outside the scope of the First Amendment or even taking a middle-ground position that takes into account "different levels of editorial choice"[71] will require the Court to distinguish speakers on the basis of a judgment upon their contribution to public discourse—the kind of normative assessment that the Court has indicated it has abandoned, in favor of an approach under which the rights of institutions such as the press "rise and fall together" with those of any other speaker.[72]

C. Coverage and Protection for "Heartland" Social Media Content Moderation: What Is the Invalid Interest?

The circuit split in *Moody* was not over whether "expressive activity" triggered First Amendment scrutiny. That expressive activity does receive coverage is supposed by the Fifth Circuit's discussion. Rather, the lower courts took opposing views as to whether any of the platforms' activities qualified as expressive. In short, the Fifth Circuit held that none of it was expressive; the Eleventh Circuit concluded that it was all expressive; and the Supreme Court remanded because it recognized "heartland applications" of the challenged laws to news feeds as expressive, some of the activities as expressive but reserved judgment as to other applications for a more developed record.[73]

If coverage is unambiguously stated in *Moody*, protection is not so. In part this is deliberate; for instance, the Court actively avoids specifying a level of scrutiny.[74] The Court is clear that the interest professed by Texas fails even the less stringent test articulated in *United States v. O'Brien*,[75] because it is "not valid."[76] But the Court describes the interest differently along its analysis. At the start, it is "to correct the mix of speech that the major social-media platforms present," which is repudiated because "a State may not interfere with private actors' speech to advance its own vision of ideological balance."[77] Later on, the Court seems to refer to the interest as that of "a greater balance in the marketplace of ideas," which it rejects as "not support[ing] the government's effort to alter the speaker's own expression."[78] Attending to the coverage–protection distinction is

69 [•]
70 *See*, e.g. Citizens United v. FEC, 585 U.S. 310, 905 (2010).
71 *Moody*, 144 S.Ct. at 2398.
72 *See* Eugene Volokh, *Freedom for the Press as an Industry, or for the Press as a Technology? From the Framing to Today*, 160 U. Pa. L. Rev. 459, 463 (2012) (discussing the meaning of the Press Clause).
73 *See Moody*, 144 S.Ct. at 2409.
74 *Id.* at 2407.
75 391 U.S. 367 (1968).
76 *Moody*, 144 S.Ct. at 2407.
77 *Id.*
78 *Id.* at 2408.

useful in parsing some of the tension. For instance, when the majority speaks of "barr[ing] the government from forcing a private speaker to present views it wished to spurn in order to rejigger the expressive realm," it must be interpreted in the context of rejecting the view that framing the goal as combatting "censorship," as the Fifth Circuit did,[79] "the government can[] get its way" by placing the regulation outside the scope of the First Amendment.[80]

Yet scholars discussing the decision have identified a deeper, apparent contradiction between the two conflicting statements of what exactly characterizes the interest that the majority spurns as invalid. Is the invalid interest one that attaches to any regulation whose goal is to "alter . . . expression" to protect users from content moderation?[81] Or does the invalid interest refer instead to the partisan motivation that the Court sees as tainting the Texas law?[82]

III. THE *BUCKLEY* PRINCIPLE AND SPEECH REDISTRIBUTION

To answer the questions raised by scholars about *Moody's* implications for social media regulation, we need to understand the majority's reliance on *Buckley*. It is by reference to *Buckley* that the Court construes the "unadorned interest . . . that government may not pursue . . . consistent with the First Amendment."[83] *Moody* commentary has cautioned that the *Buckley* principle risks entailing a deregulatory First Amendment for social media,[84] precluding even transparency obligations.[85] Scholars have long argued that the Court's resistance to redistribution (distilled into an adage in *Buckley*[86]) can undermine democratic regulation seen as needed to protect the public sphere.

In this Part, I explore how *Moody* and the line of cases leading up to it and on which it relies offer another route. I make this argument by engaging with the reading of the *Buckley* principle that Justice Kagan advocated in scholarly writing before joining the Court. Under that reading, redistribution is not *per se* unconstitutional but must overcome a presumption of unconstitutionality justified on the opportunity that redistribution it opens for improper government motive. There is still a Lochnerian hue to *Buckley* even under this heuristic reading. "Natural" distributions resulting from property rights and freedom of contract are treated as neutral or at least less deserving of judicial scrutiny.[87] Yet there is still a margin that may be explored by social media reform that is structural.

[79] *See* 49 F.4th 439, 466, 494 (2022).

[80] *Moody*, 144 S.Ct. at 2402 ("[T]he government cannot get its way just by asserting an interest in improving, or better balancing, the marketplace of ideas. . . . [I]n case after case, the Court has barred the government from forcing a private speaker to present views it wished to spurn in order to rejigger the expressive realm.").

[81] *See* Douek & Lakier, *supra* note 10, at 136; Langvardt & Rozenshtein, *supra* note 43, at 29.

[82] *See* Douek & Lakier, *supra* note 10, at 138–39; Langvardt & Rozenshtein, *supra* note 43, at 30.

[83] *Moody*, 144 S.Ct. at 2407–08.

[84] *See*, *e.g.* Douek & Lakier, *supra* note 10, at 136; Langvardt & Rozenshtein, *supra* note 43, at 29.

[85] *See* Jack M. Balkin, Moody v. NetChoice*: The Supreme Court Meets the Free Speech Triangle*, 2024 SUP. CT. REV. 127, 159–60 (2025).

[86] "The concept that government may restrict the speech of some elements of our society in order to enhance the relative voice of others is wholly foreign to the First Amendment . . . ." Buckley v. Valeo, 424 U.S. 1, 48–49 (1976).

[87] *Cf.* Sullivan, *supra* note 6, at 162–63 (describing *Citizens United* as "reflecting a fear that government intervention is a more pernicious threat to the distribution of speech than is any supposed vast accumulation of private capital.").

As pertains media regulation and social media regulation specifically, that margin is revealed if we reexamine cases that are often understood as standing for a principle that private ordering is not to be disturbed[88] and test whether a different concern with improper motive is also at play. Because effecting redistribution often entails a role for government officials that draws scrutiny,[89] both concerns are likewise often collapsed. In cases such as *Tornillo* and *PG&E*, both factors are present and aligned. But *PruneYard* and *FAIR* show this need not always be the case.

This Part starts by showing why a categorical reading of the *Buckley* principle cannot be sustained. It next discusses the reading proposed by then-Professor Kagan. Then, it reexamines the cases that the *Moody* Court relied on from that perspective and shows how motive played an important, explicit role. This reexamination also shows why the outcome in *PruneYard* and *FAIR* need not be anchored on an unsubstantiated notion of "inherently expressive conduct" (also featured in *Moody*), which has been rightly criticized.

I do recognize that, even if cast in the terms suggested here, *PruneYard* and *FAIR*—which may be read as peripheral interferences with property rights to exclude from real estate—seem to provide fragile support for redistribution that affects interferes with core decision-making of actors such as newspapers (*Tornillo*), newsletter editors equated with them (*PG&E*), and, the argument could go, platforms (*Moody*). The next Part explores *Turner*,[90] which offers firmer grounding for this sort of structural regulation, which I distinguish from the cases surveyed here.

A. Beyond Categorical Bars on Redistribution

The *Buckley* principle is often read as a substantive, categorical bar to redistribution. And, indeed, *Moody* intimates as much, for instance, when it relies on Justice Kavanaugh's dissent in the net-neutrality case before he joined the Supreme Court.[91] But such a reading is simply too strong.

At the outset, making sense of *Buckley* requires establishing some baseline distribution against which any challenged measure's deviation is assessed. Regular enforcement of property rights involves "restrict[ing] the speech of some elements of our society in order to enhance the relative voice of others."[92] The principle might instead be taken to mean that the legal entitlements must not be allocated or redistributed with the *goal* of enhancing the relative voice of others. There is room for reading *Moody* as subscribing to this view when it names "enforcing competition laws" as an example of a legitimate avenue for regulation.[93] But that is also too strong. As Rebecca Tushnet has shown, appreciating a free speech justification for copyright protection (instead of persisting on deeming it an unrelated exception to freedom of expression guarantees) means that the marketplace it creates is premised on the idea that First Amendment values are served

[88] *Cf. id.* at 162.

[89] *Cf.* Lakier, The Non-First Amendment Law of Freedom of Speech, *supra* note 11, at 2369–70.

[90] Turner Broad. Sys. Inc. v. FCC (*Turner I*), 512 U.S. 622 (1994); Turner Broad. Sys. Inc. v. FCC (*Turner II*), 520 U.S. 180 (1997).

[91] *See* Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2408 (2024) (quoting U.S. Telecom Ass'n v. FCC (*USTA*), 855 F.3d 381, 432 (D.C. Cir. 2017) ("[E]xcept in rare circumstances, the First Amendment does not allow the Government to regulate the content choices of private editors just so that the Government may enhance certain voices and alter the content available to the citizenry.")).

[92] *Cf.* Jack Balkin, *Some Realism about Pluralism: Legal Realist Approaches to the First Amendment*, 1990 DUKE L.J. 375, 411 ("[E]ven state laws regarding theft and destruction of property affect access to the means of communication. One can communicate by commandeering a television station and holding the station managers hostage until they deliver one's message.")

[93] *Moody*, 144 S.Ct. at 2402; *cf.* Douek & Lakier, *supra* note 10, at 158 (arguing privacy and consumer protection laws are likely valid under *Moody*).

by the system's operation, which enhances the speech of some elements in our society (copyright holders) by restricting that of others (those who would wish to make unauthorized use of copyright-protected works).[94]

Someone who adheres to the categorical reading of the *Buckley* principle might concede that copyright contradicts it and revise the claim. Copyright is an exception to the categorical ban on redistribution in matters of speech, they might say, because of its textual constitutional support.[95] But this relaxed categorical reading of the *Buckley* principle also doesn't work. Copyright is one example of private-law baseline distribution whose purpose may be understood in terms of restricting speech to affirm First Amendment values. Public law examples abound. Telephone and telegraph common-carrier obligations were adopted because of concerns with concentration of power over channels of communication.[96] Early-Republic postal laws subsidized newspapers with cheaper rates,[97] which were cross-subsidized by other mail,[98] "disproportionately sent by merchants."[99] Worker speech regulations offer some protection from sanctions, threats, and coercion that could otherwise be bargained away in a nominal exercise of freedom of contract to enter into agreements with employers[100]

Baker and Lakier use this rich tapestry to explore how such practices belie a claim that speech-enhancing redistribution is a principle foreign to U.S. free speech law. But Baker contends any sensible analysis of structural regulation must break with the Court's content neutrality jurisprudence and that "content-motivated structural regulation of the media is often properly constitutional."[101] Lakier likewise contends that a "more positive, less property-based, and less formalist view of freedom of speech . . . require[s] significant change to a good number of contemporary doctrinal rules."[102] The argument advanced in this Article is indebted to their contributions. But it seeks to develop a different analysis of the doctrine as it stands.

B. The *Buckley* Principle as a Proxy for Neutrality

The categorical reading stands in contrast to the one that Justice Kagan, who writes for the Court in *Moody*, articulated before she joined the bench. Then-Professor Kagan discussed *Buckley* at length as part of her doctrinal account of First Amendment jurisprudence, which construed it as neither speaker- nor audience-based, but "government-oriented."[103] The article's main claim is that, while the Court did not fashion its doctrine deliberately as a series of tests for impermissible

[94] *See* Rebecca Tushnet, *Copyright as a Model for Free Speech Law: What Copyright Has in Common with Anti-Pornography Laws, Campaign Finance Reform, and Telecommunications Regulation*, 42 B.C. L. REV. 1, 44 (2001).

[95] U.S. CONST. art. I, § 8, cl. 8.

[96] C. Edwin Baker, Turner Broadcasting*: Content-Based Regulation of Persons and Presses*, 1994 SUP. CT. REV. 57, 95–97 (1994); Lakier, The Non-First Amendment Law of Freedom of Speech, *supra* note 11, at 2316–30.

[97] Baker, *supra* note 96, at 97–99; Lakier, The Non-First Amendment Law of Freedom of Speech, *supra* note 11, at 2309–16.

[98] Lakier, The Non-First Amendment Law of Freedom of Speech, *supra* note 11, at 2313–1234.

[99] Baker, *supra* note 96, at 98.

[100] Lakier, The Non-First Amendment Law of Freedom of Speech, *supra* note 11, at 2331–42.

[101] Baker, *supra* note 96, at 127.

[102] Lakier, *supra* note 12, at 1334.

[103] *See generally* Kagan, *supra* note 9, at 423–26; *see also* KATHLEEN ANN RUANE, CONG. RSCH. SERV., R41290, SUPREME COURT NOMINEE ELENA KAGAN: SELECTED FREEDOM OF SPEECH SCHOLARSHIP 1 (2010) (describing it as her "most comprehensive" First Amendment article).

government motive, that was still the best way of making sense of it.[104] Kagan was surely not the only scholar to pursue a motive-inquiry theory for the First Amendment.[105] But focusing on her lengthy scholarly treatment of the *Buckley* principle illuminates the avenue for social media regulation that Justice Kagan's *Moody* guidance leaves open.

Buckley is a special case for her government-based theory of First Amendment scrutiny: the Court did not even mention motivation.[106] It faulted redistribution not on an illicit motivation belied by the law, as content neutrality analysis would require, but on the facially neutral goal of balancing speakers. Kagan explains, however, that redistributive laws are an awkward fit for content neutrality analysis. While facially neutral, such laws allow legislators to get away with improper considerations, much like regulations conferring officials unconstrained discretion over speech.[107] Like such regulations, redistributive laws complicate judicial inquiry into "the presence of such deliberations."[108] As such, to Kagan, the *Buckley* principle plays a heuristic role that avoids the paralysis (or laxity) that otherwise would follow from content neutrality analysis. The function it serves, to Kagan, is burden-shifting; it establishes a rebuttable presumption.[109]

What justifies a presumption against redistributive laws, Kagan argues, is that they "often (though not always) stem partly from hostility or sympathy toward ideas—or, even more commonly, from self-interest."[110] This is in part inherent because redistribution, even if facially neutral—which to Kagan justifies lesser scrutiny by raising the cost of restricting speech while hiding an impermissible motive—has "a set of targeted and coherent effects on ideas and speakers."[111] And this is the case even when the legislative goal is benign, such as promoting balance in the marketplace of ideas, given that formulating a view about the right balance implies a judgment on the existing "mix of ideas" that will hardly be disinterested.[112]

In campaign finance cases (which *Buckley* itself was), there are two interconnected reasons that underlie the anti-redistribution principle. The first reason fits squarely with self-dealing. It is the concern that restrictions on campaign spending to promote electoral balance raise the concern that incumbents will find in it an instrument for entrenchment.[113] This would apply even to facially neutral restrictions, given that incumbents could "reverse engineer" regulation

[104] Kagan, *supra* note 9, at 415.

[105] *See*, *e.g.*, Lawrence Rosenthal, *First Amendment Investigations and the Inescapable Pragmatism of the Common Law of Free Speech*, 86 IND. L.J., 2, n. 4 (2011) (collecting sources). For a recent account of First Amendment doctrine in terms of government motive, see R. George Wright, *Sharpening the Focus of Free Speech Law: The Crucial Role of Government Intent Government Intent*, 9 TEX. A&M L. REV. 405 (2022).

[106] *See* Buckley v. Valeo, 424 U.S. 1, 48–51 (1976).

[107] *Compare* Saia v. New York, 334 U.S. 558 (1948) (standardless licensing scheme for use of sound amplifiers administered by Chief of Police held unconstitutional) *with* Kovacs v. Cooper, 336 U.S. 77 (1949) (blanket prohibition on sound amplifiers held constitutional).

[108] Kagan, *supra* note 9, at 469.

[109] *See* Kagan, *id.* at 466, n. 146. Kagan does not identify any sort of evidence (e.g. legislative history) that would defeat that presumption. I use "heuristic" to refer to this reading of the *Buckley* principle instead.

[110] *Id.* at 467.

[111] *Id.* at 469.

[112] *See id.* at 469–70.

[113] *See* City of Austin v. Mich. Chamber of Commerce, 494 U.S. 652, 692 (1990) (Scalia, J., dissenting) ("The incumbent politician who says he welcomes full and fair debate is no more to be believed than the entrenched monopolist who says he welcomes full and fair competition." (emphasis in original)). *See also* Kagan, *supra* note 9, at 470.

to benefit sectors from whom they draw support to the detriment of those who oppose them, as Justice Scalia speculated in one such case.[114] Other cases raise a different, though related, issue: that redistribution may be used to favor one side of an issue.[115]

C. Self-Dealing and Favoritism Invalidating Speech Redistribution

A reexamination of the cases relied upon by the *Moody* Court bears out the heuristic reading of the *Buckley* principle. *Tornillo* and *PG&E* reveal explicit concerns with government favoritism or manipulation. *PruneYard* and *FAIR* show that First Amendment jurisprudence countenances redistribution that does not raise such concerns. Taking up such cases from this perspective helps to clarify what interests the *Moody* Court considers invalid and identify the structural margin available for social media regulation.

As the majority notes,[116] *Tornillo* is the seminal case.[117] Reliance on *Tornillo* by the *Moody* Court was read as a win for social media companies by both those who celebrated and those who decried the decision,[118] because the protection the Court recognized for the *Miami Herald*'s editorial rights in that case is often described as close to absolute.[119] The *Tornillo* Court took sympathy with arguments about the lack of competition and concentration of power (especially in areas served by a single newspaper). But it did so only to conclude that such arguments did not change the outcome. The majority further noted that the reply-of-reply requirement provided by the Florida statute added a cost to the operation of an inherently limited print newspaper and would require foregoing other pieces preferred by the editors, but stated it would have still reached the same conclusion if that were not the case.[120]

Yet the *Tornillo* Court endorsed a view of the role of the press that emphasized its democratic role as part of the interpretation of the First Amendment. While not closing the door on other formulations for access rights, it questioned whether any mechanism that interfered with the "crucial process" of editing could be "consistent with First Amendment guarantees of a free press as they have evolved to this time."[121] It quoted Zechariah Chafee's 1947 Hutchins Commission report for an argument that connected editorial independence with the "liberty of the press."[122] Even Justice White, who writes separately to emphasize a narrow holding of the Florida law's

[114] *Cf. Austin*, 494 U.S. at 692 (Scalia, J., dissenting) (speculating that the regulation might have been motivated by a desire to create a benefit for unincorporated unions). In *Citizens United* (which overruled *Austin*), the Court noted the restrictions it found unconstitutional created "disfavored associations of citizens—those that have taken on the corporate form—are penalized for engaging in the same political speech." Citizens United v. FEC, 585 U.S. 310, 356 (2010).

[115] *See* Kagan, *supra* note 9, at 470 ("*Belotti*, which barred corporations from spending money in referendum campaigns, almost surely arose from the historic role of corporate expenditures in defeating referenda on taxation.") (citing First Nat'l Bank v. Bellotti, 435 U.S. 765 (1978)).

[116] Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2400 (2024).

[117] Mia. Herald Publ'g Co. v. Tornillo, 418 U.S. 241 (1974).

[118] *See* Noah Feldman, *Social Media Ruling Is a Free-Speech Landmark*, BLOOMBERG L. (July 1, 2024), https://news.bloomberglaw.com/us-law-week/social-media-ruling-is-a-free-speech-landmark-noah-feldman; Tim Wu, *The First Amendment Is Out of Control*, N.Y. TIMES, July 7, 2024, at SR5.

[119] *See* U.S. Telecom Ass'n v. FCC (*USTA*), 855 F.3d 381, 435 (D.C. Cir. 2017) (Kavanaugh, J., dissenting).

[120] *See Tornillo*, 418 U.S. at 248–54, 258.

[121] *Id.* at 258.

[122] *See Tornillo*, *id.*, n. 25 (quoting Zechariah Chafee Jr., 2, GOVERNMENT AND MASS COMMUNICATIONS 633 (1947) ("[L]iberty of the press is in peril as soon as the government tries to compel what is to go into a newspaper.")).

right of reply for political candidates, relies on *Mills v. Alabama*'s institutional reading of the Press Clause.[123] Of course, this does not correspond to the Court's current views of the press and the Press Clause,[124] and scholars have contested whether there is support for such an interpretation in the case law.[125] Yet there is no denying that it influenced the *Tornillo* Court. As the Court later put it, "*Tornillo* affirmed an essential proposition: The First Amendment protects the editorial independence of the press."[126] Seen as a press case, *Tornillo* is "unexceptional" and fits well in a line of cases that established "prophylactic rule[s] to protect press freedom from possible encroachments."[127]

The heuristic adopted by Kagan suggests self-dealing when legislators select the public's watchdog for restrictions that benefit the political class.[128] Thus, *Tornillo* may be read as establishing an even higher bar for redistributions affecting print media. This is consistent with the checking value theory offered by Vincent Blasi as a better explanation for First Amendment cases that rest on "function it performs, in checking the abuse of official power."[129] Blasi himself opposed granting print media "total immunity from regulation". Yet he noted that partial regulation of the media, as postulated by Lee Bollinger—the coexistence of strong protections for newspapers with a different regime for broadcasting[130]—could find grounding in checking value theory to support the holding in *Tornillo*.[131]

Favoritism was an explicit factor in *PG&E*.[132] The California Public Utilities Commission had ordered PG&E to, four times a year, run newsletters prepared by a consumer group instead of its own newsletter. The newsletters were mailed to subscribers with their bills. The *PG&E* plurality was perturbed by the fact that the Commission had "discriminate[d] on the basis of the viewpoints of the selected speakers."[133] It did not "award access to the public at large,"[134] but went as far in the opposite direction as picking the particular speaker—a speaker selected on the basis of their interests whose newsletters would be run by PG&E. Justice Powell expressly described this mechanism as "favoritism."[135] The plurality was troubled by that and, somewhat obliquely but persistently, by the perspective that the authority affirmed by the Commission could be used to

[123] *See Tornillo*, 418 U.S. at 260 (White, J., concurring) (quoting Mills v. Alabama, 384 U.S. 214, 220 (1966) ("The Constitution specifically selected the press . . . to play an important role in the discussion of public affairs.")). *Cf.* Floyd Abrams et al., *The Press Clause: The Forgotten First Amendment*, 5 J. FREE SPEECH L. 561, 628 (2024).

[124] *See generally* RonNell Andersen Jones & Sonja R. West, *Presuming Trustworthiness*, 75 FLA. L. REV. 799 (2024).

[125] *See generally* Volokh, *supra* note 72; Eugene Volokh, *The Press Clause: Important, Remembered, and Equally Shared*, 5 J. FREE SPEECH L. 659 (2024); *but see* Floyd Abrams et al., *supra* note 123.

[126] Turner Broad. Sys. Inc. v. FCC (*Turner I*), 512 U.S. 622, 653 (1994); *see also* PruneYard Shopping Ctr. v. Robins, 447 U.S. 74, 93 (1980) ("*Tornillo* . . . rests on the principle that the State cannot tell a newspaper what it must print.").

[127] Leslie Kendrick, Miami Herald Publishing Company v. Tornillo*: Freedom of Speech for Whom?*, *in* PAINTING CONSTITUTIONAL LAW 90 (M.C. Mirow & Howard M. Wasserman eds., 2021).

[128] *Cf.* Kagan, *supra* note 9, at 470.

[129] Vincent Blasi, *The Checking Value in First Amendment Theory*, 2 AM. BAR FOUND. RSCH. J. 521, 528 (1977).

[130] *See generally* Lee C. Bollinger, *Freedom of the Press and Public Access: Toward a Theory of Partial Regulation of the Mass Media*, 75 MICH. L. REV. 1 (1976).

[131] Blasi, *supra* note 129, at 630–31.

[132] Pac. Gas & Elec. Co. v. Pub. Utilities Comm'n (*PG&E*), 475 U.S. 1 (1985) (plurality opinion).

[133] *Id.* at 12.

[134] *Id.* at 13.

[135] *Id.* at 14.

justify other orders through which the government could manipulate public discourse. This concern appeared across multiple opinions in the case. Justice Marshall's concurrence was alarmed by the "subsidization of another *speaker chosen by the State*."[136] Even the dissents acknowledged those concerns, though they disputed their applicability to the facts.[137] The opinions consistently echoed apprehension with an underlying improper motive and with the same concern with " 'tilt[ing] public debate in a preferred direction' "[138] that animates *Moody*.

D. Diffuse Effects Sustaining Redistribution

Thus, improper motive played an explicit role and holds explanatory power in the First Amendment violations found in *Tornillo* and *PG&E*. The heuristic reading of the *Buckley* principle also illuminates cases where no violation was found.

PruneYard[139] is particularly instructive because it severs the link between the Court's distrust of the government and its laissez-faire tendencies in First Amendment scrutiny. California had interpreted state constitutional law as requiring shopping center owners to host speech they would prefer to exclude. This outcome is consistent with the heuristic understanding of the *Buckley* principle.[140] Unlike the right-of-reply statute in *Tornillo* or the access order in *PG&E*, California constitutional law did not select speakers based on viewpoint, did not target particular subjects, and applied broadly rather than to a narrow class of speakers or topics.[141] The redistribution did not suggest self-dealing, and it was also not plausibly a way of benefiting particular views held by those afforded access or disadvantaging the views held by property owners.

Though her 1996 article did not address *PruneYard*, Kagan's heuristic reading of *Buckley* explains the outcome. While the access *PruneYard* approved was vast, "[t]he diffuseness of the law outweighs the severity of its impact on any particular idea as evidence of motive."[142] The California Supreme Court's reasoning was put in the most general of terms in terms of the beneficiaries. It concluded that state constitutional provisions on the freedoms of speech and petition "protect speech and petitioning, reasonably exercised, in shopping centers even when the centers are privately owned."[143] Compare that to *Tornillo*, where access was granted only to a candidate for office who had been criticized on a newspaper.[144] In *PruneYard*, the high-school plaintiffs "sought to solicit support for their opposition to a United Nations resolution against 'Zionism.' "[145] But the access required of shopping mall owners did not hinge on any of those aspects. It would obviously cover pamphleting for the contrary stance, but not just that. It would in fact go much further and extend to all shopping mall visitors the "reasonabl[e] exercise[]" of state freedoms

[136] *See PG&E*, *id.* at 24 (Marshall, J., concurring) (concluding interest in "subsidization of another *speaker chosen by the State*" could not justify burdening PG&E) (emphasis added).

[137] *See PG&E*, *id.* at 29 (Rehnquist, J. dissenting) (contending the right question was whether "the effect of the action approximates that of direct content-based suppression of speech"). *See also PG&E*, *id.* at 40 (Stevens, J., dissenting) (finding threat of government propaganda not "even remotely" present).

[138] Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2407 (2024) (quoting Sorrell v. IMS Health Inc., 564 U.S. 552, 578–79 (2011).

[139] PruneYard Shopping Ctr. v. Robins, 447 U.S. 74 (1980).

[140] *See supra* Section III.B.

[141] *See PruneYard*, 447 U.S. at 87 (noting no specific messages were dictated by the state and no speakers or views were favored over others).

[142] Kagan, *supra* note 9, at 452.

[143] Robins v. Pruneyard Shopping Ctr., 23 Cal. 3d 899, 910 (1979), *aff'd*, 447 U.S. 74 (1980).

[144] Mia. Herald Publ'g Co. v. Tornillo, 418 U.S. 241, 244, n. 2 (1974).

[145] *PruneYard*, 447 U.S. at 80.

of speech and petition, subject to "timer, place, and manner rules."[146] So *PruneYard* shows "the diverse, diffuse, and crosscutting content-based effects usually associated with content-neutral laws," while *Tornillo* has "a set of targeted and coherent effects on ideas and speakers."[147]

E. "Expressivity" Is Question-Begging

This is admittedly not how the *Moody* Court cast *PruneYard*. The principle it finds is that the shopping mall was not engaged in its own expressive activity, which would alter or disrupt the mandated access.[148] Yet that begs the question. The mall owner did have a speech policy: "a policy not to permit any visitor or tenant to engage in any publicly expressive activity . . . that is not directly related to its commercial purposes."[149] The access granted by the lower courts in *PruneYard* curtailed that policy.

It is certainly true that a mall, in some very intuitive way, is not "expressive" as the *Miami Herald*, or even (though certainly to a lesser extent) PG&E's *Progress*.[150] But that does not elucidate what "expressivity" means under the First Amendment, at the very least in this context. That there was a "disruption" or "alteration" can only be denied if we do not mean *any* disruption or alteration. It calls for qualifying what kind of disruption or alteration counts—which leads back to *Buckley* as a proxy for improper motive.

This becomes clearer with *FAIR*.[151] The Court validated mandated access to law schools for military recruiters as a condition for federal funding. Chief Justice Roberts's opinion for a unanimous Court emphasized that the Solomon Amendment regulated conduct, not speech.[152] The unanimous opinion concluded that law schools were not compelled to speak when they were required to provide access to the recruiters and that facilitation was not expressive. This again begs the question.[153] The mandated party had a policy—denying access in protest of the homophobic "don't ask, don't tell" policy. The opinion makes no secret that Congress's clear intent was to override the schools' expressive policy choices; the amendment directly responded to law schools' protest policies by cutting federal funding to institutions that restricted military recruiter access.[154]

Better grounding, I argue, is instead suggested by the analogy the Chief Justice draws to incidental speech restrictions in anti-discrimination laws.[155] The parallel lies in how incidental burdens on expressive conduct are treated[156]: While the government may not generally proscribe racist speech,[157] it does proscribe discriminatory hiring practices, thereby incidentally restrict-

[146] 23 Cal. 3d at 910.
[147] Kagan, *supra* note 9, at 469.
[148] Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2401 (2024).
[149] *PruneYard*, 447 U.S. at 77.
[150] *See* Ashutosh Bhagwat, *Why Social Media Platforms Are Not Common Carriers*, 2 J. FREE SPEECH L. 127, 149 (2022).
[151] Rumsfeld v. F. for Acad. & Institutional Rts. (*FAIR*), 547 U.S. 47 (2006).
[152] *See id.* at 60.
[153] *See* Dale Carpenter, *Unanimously Wrong*, 2006 CATO SUP. CT. REV. 214, 244 (2006) (criticizing *FAIR*'s reliance on lack of "inherently expressive" character of speech).
[154] *See FAIR*, 547 U.S. at 51–52 (noting the Solomon Amendment was enacted after law schools began restricting military recruiter access).
[155] *Id.* at 62.
[156] Note that no false equivalence between race discrimination and military recruitment boycotts is implied here—the analogy is structural.
[157] *Cf.* R.A.V. v. City of St. Paul, U.S. 505 377, 391 (1992).

ing expressive choices like posting "White Applicants Only" signs. Likewise, *FAIR* stands for the proposition that the government is entitled to require access for military recruiters, incidentally restricting the schools' (expressive) boycott, but in a targeted exercise of the government's authority that does not reach the law schools' other forms of expressing dissent,[158] or interfere with its core mission.[159] Both are to be regarded as an exercise of regulatory authority that does not "raise[] the specter that the government may effectively drive certain ideas or viewpoints from the marketplace" through coercion.[160]

In any case, as articulated by the Court, expressivity does not create a barrier to diffusing platform power. Lack of expressivity would take an access requirement outside of First Amendment coverage.[161] *Moody* concluded that the First Amendment is "implicate[d] . . . if, though only if, the regulated party is engaged in its own expressive activity."[162] *FAIR* likewise found that law schools' had neither their speech nor expressive conduct restricted, though it added that there would be no First Amendment violation even if it were so.[163]

* * *

As opposed to a categorial bar on redistribution, a heuristic reading of the *Buckley* principle sees it as a proxy for probing whether redistribution is even-handed and free from biases that could allow the government to improperly use this authority to preempt political discussion and contestation, favor sides in a political debate, or (even if obliquely) enforce orthodoxy.

The editorial rights cases on which *Moody* relies collectively bear out the factors that the heuristic reading of the *Buckley* principle highlights. In *Tornillo* and *PG&E*, the Court emphasized self-dealing and favoritism and invalidated the redistribution. In *PruneYard*, the generality of California's access provision mitigated concerns of improper motivation, as it neither singled out specific speakers nor promoted particular ideas. *FAIR* similarly upheld a requirement that restricted a private entity's exclusion rights but left its ability to express opposition intact. The redistribution burdens law schools incidentally, like anti-discrimination laws that prohibit "White Applicants Only" signs. In that, *FAIR* is an example of redistribution that does not obliquely coun-

[158] *See FAIR*, 547 U.S. at 60 ("Law schools remain free under the statute to express whatever views they may have on the military's congressionally mandated employment policy, all the while retaining eligibility for federal funds.."). *Cf.* Volokh, *supra* note 45, at 53 ("[P]resumably, universities would have remained free to choose whether to include military recruiters in any 'Recommended Recruiters' list that they would choose to compile.").

[159] *Cf.* Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2402 (2024), n. 4 (observing that *FAIR* would have been decided differently "if the regulation had affected what happened in law school classes instead").

[160] Simon & Schuster, Inc. v. Members of the N.Y. State Crime Victims Bd., 502 U.S. 105, 116 (1991). A contrast here may be drawn between those restrictions and the invalidation of a government exemption for robocalls. While the Court fragmented over the level of scrutiny, six Justices were united in denying the government the power to claim for itself use of a medium of communication it denied to other speakers. *See* Barr v. Am. Ass'n of Pol. Consultants, 140 S.Ct. 2335, 2346 (2020) (plurality opinion) ("[T]he law favors speech made for collecting government debt over political and other speech . . . ."); *AAPC*, 140 S.Ct. at 2357 (Sotomayor, J., concurring in the judgment); *AAPC*, 140 S.Ct. at 2364 (Gorsuch, J., concurring in the judgment in part and dissenting in part).

[161] *See supra* Section II.A.

[162] *Moody*, 144 S.Ct. at 2400.

[163] *Cf.* Rumsfeld v. F. for Acad. & Institutional Rts. (*FAIR*), 547 U.S. 47, 65–66 (2006) (comparing regulated conduct to "speech" entailed by tax reporting obligations).

tenance the government to enforce orthodoxy.[164] This is not to say that other factors played no role. They certainly did.[165] The goal here is rather to show that motive was explicitly emphasized and has explanatory power for this line of cases.

Proposals for diffusing platform power as such find support in the virtues of generality. As noted before, however, there is a sensible objection that *FAIR* and *PruneYard*'s access-to-real-estate mandates and their underlying justifications are not readily expanded to Fourth Estate institutions such as newspapers (*Tornillo*), to commercial newsletters entirely alien to the Fourth Estate (*PG&E*), and—the argument would go— *a fortiori*, to social media platforms.[166] This objection and the fact that the case provides strong grounding and important insight into structural regulation recommend examining *Turner*, on which the *Moody* Court also relied.[167]

IV. STRUCTURAL REGULATION IN *TURNER* AND *MOODY*'S "SPEECH NIRVANAS"

A. Neutrality Analysis in *Turner* Confirms *Buckley* Principle as Proxy

Turner was a challenge to must-carry requirements created by the Cable Television Consumer Protection and Competition Act. The 1992 statute required cable operators to devote a portion of their channel capacity to carry local broadcast television stations, preventing cable operators from dropping local broadcasters in favor of other programming.[168] The case was twice heard by the Court. Both times, the Court splintered into multiple opinions, with no single rationale commanding a majority.[169]

The final disposition involved a paradox:[170] the four-Justice plurality goes to great lengths to avoid relying on content-based interests[171] and hence strict scrutiny; the four-Justice dissent classifies the law as content-based and thus failing strict scrutiny. The statute was upheld as a result of Justice Breyer's concurrence in the judgment, which does not join the anticompetitive-behavior rationale and explicitly emphasizes the quality of content but declines to adopt strict scrutiny.

Hence, a majority of the Court (the dissent and Justice Breyer) did not agree that competition was a reason to uphold the law; but a majority of the Court (the plurality and Justice Breyer) applied intermediate scrutiny, not strict scrutiny presumably triggered by the content discrim-

[164] *Cf.* W. Va. State Bd. of Educ. v. Barnette, 319 U.S. 624, 642 (1943).

[165] For example, in both *Tornillo* and *PG&E*, the Court also expressed concern with potential chilling effects and the likelihood of speech suppression. *See* Mia. Herald Publ'g Co. v. Tornillo, 418 U.S. 241, 256–57 (1974); Pac. Gas & Elec. Co. v. Pub. Utilities Comm'n (*PG&E*), 475 U.S. 1, 16–17 (1985).

[166] *Cf.* Bhagwat, *supra* note 67, at 122–23, n. 75; Bhagwat, *supra* note 150, at 149.

[167] *See* Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2400–01, 2402 (2024); *id.* at 2410 (Barrett, J., concurring); *id.* at 2433 (Alito, J., dissenting).

[168] *See* Turner Broad. Sys. Inc. v. FCC (*Turner I*), 512 U.S. 622, 630–32 (1994).

[169] *See Turner I*, *id.* at 662–63, 676 (Kennedy, J., plurality opinion in part); *Turner I*, *id.* at 676–80 (O'Connor, J., concurring in part and dissenting in part); Turner Broad. Sys. Inc. v. FCC (*Turner II*), 520 U.S. 180, 186–229 (1997) (Kennedy, J., plurality opinion); *Turner II*, 520 U.S. at 229–35 (Breyer, J., concurring in part and concurring in the judgment).

[170] *See Turner II*, 520 U.S. at 234–35 (O'Connor, J., dissenting).

[171] *Cf.* Ashutosh Bhagwat, *Of Markets and Media: The First Amendment, the New Mass Media and the Political Components of Culture*, 74 N.C. L. REV. 141, 165 (1995) (describing the analysis of the *Turner* plurality as "blurring" the distinction between content-based and content-neutral rules "in order to sustain regulation").

ination. Arguably, the *Marks*-rule interpretation of *Turner* would, at a minimum, *not* take the competition rationale as controlling.[172] Despite that, later treatment of *Turner* often sanitizes the fragmentation and seizes precisely on the competition rationale that Justice Breyer's opinion rejected.[173]

Most importantly, however, *no* opinion in *Turner* categorically ruled out redistribution, even as all justices acknowledged editorial rights for cable operators. While the dissenting block led by Justice O'Connor in *Turner I* is not persuaded when the Court disposes of the case in *Turner II*, it nevertheless does not articulate a position that would entail that cable operators had a categorical right against redistribution—thus rejecting the argument made by the President in his veto message.[174] Indeed, Justice O'Connor was explicit that Congress could act to relieve the danger "in having a single cable operator decide what millions of subscribers can or cannot watch."[175] The dissent in *Turner I* took the view that Congress could go beyond subsidizing and empowering the FCC to set rates to promote competition in cable. It could go as far as adopting common carrier regulation over a channel range. This is despite the fact that the dissent, like the plurality led by Justice Kennedy, finds editorial rights for both cable operators (the target of the carriage requirements) and cable programmers (reflexively impacted by the carriage).[176]

It is impossible to argue that *Turner* stands for the proposition that interference with editorial rights are unconstitutional "absent a showing of market power"[177] without overlooking that and misunderstanding the disagreement between the Justices. The crux of the disagreement is between different notions of neutrality,[178] reflecting different views on how to construe the purpose of promoting FCC-supervised broadcasting. The point of contention then turns on whether the redistribution in favor of broadcasters " 'raises the specter that the Government may effectively drive certain ideas or viewpoints from the marketplace.' "[179] The plurality appeals to broadcasting access as a consumer good and, hence, a content-neutral goal; the dissent treats broadcasting as an expressive good and, hence, a content-based goal.[180]

[172] *Cf.* Marks v. United States, 430 U.S. 188, 193 (1977) (endorsing "narrowest grounds" opinion as controlling); June Medical Services LLC v. Russo, 140 S. Ct. 2103, 2148 (2020) (Roberts, C.J., concurring in the judgment) (adopting the *Marks* rule). *But see* Richard M. Re, *Beyond the* Marks *Rule*, 132 Harv. L. Rev. 1942, 1997 (2019) (recommending abandoning the *Marks* rule).

[173] *Cf.* U.S. Telecom Ass'n v. FCC (*USTA*), 855 F.3d 381, 431, 433 (D.C. Cir. 2017) (Gorsuch, J., dissenting). *Moody* is ambiguous in how it interprets *Turner*, referring to both competition and an interest in "saving local broadcasting." *Cf.* Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2402, 2408, n. 10 (2024).

[174] President George H. W. Bush's veto message described the Act as unconstitutionally "tak[ing] certain key business decisions away from cable operators and put[ting] them in the hands of the Federal Government." *See* Message to the Senate Returning Without Approval the Cable Television Consumer Protection and Competition Act of 1992, 2 Pub. Papers 1761, 1761 (Oct. 3, 1992).

[175] Turner Broad. Sys. Inc. v. FCC (*Turner I*), 512 U.S. 622, 684 (1994) (O'Connor, J., dissenting).

[176] *See id.* at 681–82 (O'Connor, J., dissenting); *cf. id.* at 637 (plurality opinion).

[177] *USTA*, 855 F.3d at 435 (Kavanaugh, J.).

[178] *See* Ashutosh Bhagwat, *Purpose Scrutiny in Constitutional Analysis*, 85 Calif. L. Rev. 297, 329, n. 131 (1997) ("[I]n Turner Broadcasting System, Inc. v. FCC, 114 S. Ct. 2445, 2458-64 (1994), and in City of Renton v. Playtime Theatres, Inc., 475 U.S. 41, 47-49 (1986), the Court declined to categorize as 'content-based' legislation that appeared to be so, because of the apparent lack of an improper purpose.").

[179] *Turner I*, 512 U.S. at 641 (quoting Simon & Schuster, Inc. v. Members of the N.Y. State Crime Victims Bd., 502 U.S. 105, 112 (1991)).

[180] *See* Leslie Kendrick, *Content Discrimination Revisited*, 98 Va. L. Rev. 231, 280 (2012), n. 203.

This conforms neatly to the heuristic reading of the *Buckley* principle.[181] Benefiting the broadcasting industry raises two sorts of related concerns. First, while local broadcasters are numerous, the beneficiaries are still identifiable, which undercuts some of the virtues of generality that allayed questions of favoritism and hostility.[182] The legislator knows who will be speaking, so the stakes are different. Justice O'Connor's endorsement of common carriage as an example of legislation that did "not suffer from the defect of *preferring one speaker to another*"[183] all but repeats *PG&E* and resonates with self-dealing reading of *Tornillo*.[184] Second, FCC supervision of the broadcasting system places broadcasters in a position that contrasts with that of other speakers and notably newspapers.[185] The opposing blocks in *Turner* polarize around both factors.[186] To those, Kagan's *Private Speech, Public Purpose* adds a third, "inadequately addressed in *Turner*": that the redistribution betrays self-dealing by the political class, given that local broadcasters "usually provide greater coverage of local politicians than other programmers do."[187]

The upshot for the project of diffusing platform power is that structural regulation of social media will be subject to and should withstand intermediate scrutiny if it redistributes control while steering clear of favoritism, hostility, or self-dealing. This principle illuminates how to read *Moody*'s seemingly disparate characterizations of the invalid governmental interest.

B. Broadcasting and Speech Nirvanas

The confines of the disagreement in *Turner* are elucidated by what both camps reject: the broadcast regulation model under which the government (through the FCC) has a supervisory role over the media—and which the Court was willing not to disturb but emphatically unwilling to extend.[188] Neither camp would have permitted the government to make determinations about how different allocations of cable channels satisfied the public interest.[189] This broad accord lying behind the fragmentation in *Turner* is echoed in *Moody*: "On the spectrum of dangers to free expression, there are few greater than allowing the government to change the speech of private actors in order to achieve its own conception of speech nirvana."[190]

[181] *See supra* Section III.B.

[182] *See supra* Section III.D.

[183] *Turner I*, 512 U.S. at 684 (O'Connor, J., dissenting) (emphasis added).

[184] *See supra* Section III.C.

[185] *Cf.* Robert C. Post, *Subsidized Speech*, 106 YALE L.J. 151, 160–62 (1996) (contending broadcasters occupy an "intermediary position" under the First Amendment, at times "public functionaries," at times "independent speakers").

[186] The Kennedy block is satisfied with the diffusion of broadcasters and the neutrality with respect to programming; the O'Connor block sees clear content preferences, starting with explicit legislative findings. *Compare Turner I*, 512 U.S. at 643–44 (plurality opinion) *with Turner I*, *id.* at 676–78 (O'Connor, J., dissenting). The Kennedy block explains FCC regulation does not mean broadcasters are speaking on behalf of the government or to advance its interests; the O'Connor block casts the FCC as an agent of Congress replacing viewers' choices. *Compare Turner I*, *id.* at 649–50 (plurality opinion) *with Turner I*, *id.* at 683–84 (O'Connor, J., dissenting).

[187] Kagan, *supra* note 9, at 468, n. 151; *id.* at 470, n. 157.

[188] *See Turner I*, 512 U.S. at 637–41. This part of the opinion is joined by all Justices except Justice Stevens.

[189] *Cf.* 47 U.S.C. § 303 (authorizing FCC broadcasting regulation "as public convenience, interest, or necessity requires")

[190] Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2407 (2024).

The image of speech nirvanas is one that could be ascribed to another aspect of First Amendment jurisprudence, epitomized by *Red Lion*.[191] The *Moody* Court doesn't as much as cite it. *Red Lion* sanctioned the fairness doctrine's rules on personal attacks and political editorializing by famously insisting that the rights of listeners, not speakers, are paramount in broadcasting.[192] Both rules were part of a larger requirement for balance, and *Red Lion* praised them as constitutional instruments to combat "unlimited private censorship operating in a medium not open to all."[193] This stands in sharp contrast with *Moody*'s pronouncement that "a State may not interfere with private actors' speech to advance its own vision of ideological balance."[194]

Yet to say that the fairness doctrine allowed the FCC or the federal government to "advance its own vision of ideological balance" is not without overstatement. While the rules at issue in *Red Lion* required the most directly impacted individuals to be heard on the broadcast,[195] the doctrine generally accorded broadcasters discretion over key decisions, including over whom to feature as spokesperson for the opposing position.[196] Statute enjoins the FCC from engaging in "censorship,"[197] suggesting a balancing act for intervention. Even as it affirmed the collective right of the people over broadcasting, the Court interpreted that type of provision as creating editorial independence for licensees.[198] Still, the Court was clear that the FCC was "entrusted by Congress with the regulation of broadcasting" and should be afforded judicial deference and latitude to " 'remain in a posture of flexibility' " so it could ensure the public interest was served.[199]

Of course, this is decidedly not a model the Court would now approve. It is also a model whose operation has been essentially defanged. While the FCC still oversees the broadcasting system, it has retreated to a much narrower role. Decades have passed since the FCC renounced the fairness doctrine.[200] Since the 1980s, the Commission has seen its mandate as promoting competition.[201] "[T]he notion of 'public interest' has become so tied to the idea of market economics that it has lost almost all independent meaning," according to a leading account.[202] We need not litigate the success of the fairness doctrine to recognize that its days are long past.

[191] Red Lion Broad. Co. v. FCC, 395 U.S. 367 (1969).

[192] *See id.* at 390.

[193] *Id.* at 392.

[194] *Moody*, 144 S.Ct. at 2407.

[195] *Cf. Red Lion*, 395 U.S. at 374–75.

[196] Thomas G. Krattenmaker & Luca A. Powe Jr., Regulating Broadcast Programming 245 (1994).

[197] *See, e.g.*, 47 U.S.C. § 326.

[198] *See* Columbia Broad. Sys., Inc. v. Democratic Nat'l Comm., 412 U.S. 94, 47 (1973).

[199] CBS, Inc. v. FCC, 453 U.S. 367, 390 (1981) (quoting *Columbia Broad. Sys., Inc. v. Democratic Nat'l Comm.*, 412 U.S. at 120).

[200] *See Inquiry into Section 73.1910 of the Commission's Rules and Regulations Concerning the General Fairness Doctrine Obligations of Broadcast Licensees*, 102 F.C.C.2d 143 (1985) (questioning constitutionality of the doctrine); Syracuse Peace Council, MO&O 2 FCC Rcd. 5043 (1987) (concluding fairness doctrine to be unconstitutional); Amendment of Parts 1, 73 and 76 of the Commission's Rules, 26 FCC Rcd. 11422, ¶¶ 3-4 (2011) (formally repealing doctrine). *Cf.* Jerry Kang, Alan Butler & Blake E. Reid, Communications Law and Policy: Cases and Materials 238–39 (8th ed. 2024).

[201] *See* Lili Levi, *The Four Eras of FCC Public Interest Regulation*, 60 813, 841–43 (2008). *Cf.* Patricia Moloney Figliola, Cong. Rsch. Serv., R45699, The Federal Communications Commission: Structure, Operations, and Budget 4–5 (2025) (summarizing the Commission's Strategic Plan for 2022-2026).

[202] Monroe E. Price, Television 168 (1996).

C. Invalid Interests Under *Moody* Revisited

Consider again the invalid interest discerned by the *Moody* majority.[203] Justice Kagan's opinion describes it in four ways.[204] First, with reference to both legislative history (which commentators have emphasized[205]) and (a point commentators have not acknowledged as much) filings that proffered ideological imbalance as the state interest served by the regulation.[206] Second, through reliance on the *Buckley* principle.[207] Third, by characterizing it as the imposition of Texas's preference over values and priorities in the platforms' "expressive products."[208] Finally, by contrasting it to *Turner*, where "the Government's interest was 'not the alteration of speech.'"[209] Our analysis helps solve the apparent disparity in these descriptions, which has confounded scholars.[210] Under the heuristic reading of the *Buckley* principle, these are different statements of the same concern with neutrality and the independence of public opinion.

As the majority tells it, Texas defended its law by proffering an interest in correcting ideological imbalance on major social media platforms.[211] Even discounting references to the "silencing of conservatives,"[212] that interest asserts overtly that which in hypothetical form alone was enough to prompt invalidation as actual viewpoint discrimination in *PG&E*.[213] Pre-*Moody*, Volokh contended that the partisanship in motivation would not make a law unconstitutional so long as the law itself was content neutral, by mandating viewpoint neutrality in hosting.[214] Though he might be right that motivation alone is not enough (*Moody* never explicitly states motivation as its basis),[215] the abortion protest cases on which Volokh relies do not support an interest in defining proper ideological balance, but in protecting access to healthcare services.[216] The interest claimed by Texas, by contrast, turns on what is being said (or not said) on social media.[217]

[203] *See supra* Section II.C.

[204] *See* Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2407 (2024).

[205] *Cf.* Douek & Lakier, *supra* note 10, at 138–39; Langvardt & Rozenshtein, *supra* note 43, at 29–30.

[206] *See Moody*, 144 S.Ct. at 2407.

[207] *See id.*

[208] *Id.* at 2408.

[209] *See Moody*, *id.*, n. 10 (quoting Hurley v. Irish-Am. Gay, Lesbian & Bisexual Grp., 515 U.S. 557, 577 (1995)).

[210] *See supra* Section II.C.

[211] *See Moody*, 144 S.Ct. at 2407 ("The objective is to correct the mix of speech . . . . The current amalgam [is] skewed to one side.") (citation omitted).

[212] *See id.* (quoting signing statement by Texas Governor and statement by law's main sponsor).

[213] *See supra* Section III.C. *Cf.* Pac. Gas & Elec. Co. v. Pub. Utilities Comm'n (*PG&E*), 475 U.S. 1, 12–14 (1985) (plurality opinion).

[214] *See* Eugene Volokh, *Treating Social Media Platforms Like Common Carriers?*, 1 J. FREE SPEECH L. 377, 448–51 (2021).

[215] *Cf.* United States v. O'Brien, 391 U.S. 367, 383 (1968) ("Court will not strike down an otherwise constitutional statute on the basis of an alleged illicit legislative motive").

[216] Such cases were, as Volokh acknowledges, "focused on the noncommunicative effects of the speech." Volokh, *supra* note 214, at 450. In McCullen v. Coakley, 573 U.S. 464, 480 (2014), as in Hill v. Colorado, 530 U.S. 703, 719–20 (2000), the interest the Court recognized was not one of achieving an equilibrium between pro- and anti-abortion speech, but the interest in protecting access to a healthcare facility. *See Hill*, 530 U.S. at 719–20 (identifying "interests in protecting access and privacy, . . . unrelated to the content of the demonstrators' speech."); *McCullen*, 573 U.S. at 481 (identifying "interests in ensuring safety and preventing obstruction").

[217] *Cf.* Bhagwat, *supra* note 150, at 150–51.

Though that could signal that the result in *Moody* was only a feature of Texas's litigation choices (or tainted motivation[218]), the analysis above shows how mandating viewpoint neutrality as a means of diffusion of platform power fails the *Buckley* principle. Under that view, *Moody*'s emphasis on the government's "ideological balance" and "speech nirvana" are not as surplus but decisive. The invalid interest recognized by *Moody* then turns on the fact that the authority Florida and Texas claimed through their content moderation laws is inconsistent with the principle that "[a]uthority . . . is to be controlled by public opinion, not public opinion by authority."[219] *Moody* echoes this when it concludes, after quoting from *PG&E*, that the interest sought by Texas would mean to empower the government "to control the expression of ideas, promoting those it favors and suppressing those it does not."[220]

From this perspective, Texas' viewpoint neutrality (which *Moody* identified as resting on an invalid interest) is not unlike Florida's consistency requirement (not directly examined in *Moody*), though operating at different stages and through different mechanisms. The neutrality requirement controls public discourse directly at the legislative level and this higher-level decision entails less discretion in enforcement—a reason why viewpoint neutrality might seem appealing. However, viewpoint discrimination is necessary for the formation of public opinion; universalizing neutrality denies users the opportunity of structuring social media so as to enhance the conversations they are interested in joining and the content they would like to consume.[221] Texas's viewpoint neutrality mandate asserts authority to override those decisions wholesale, at the legislative level. Florida's consistency requirement does that on retail: it makes that assumption of authority over the public sphere obvious by empowering officials to determine when platforms have acted inconsistently with their stated policies. This similarly enables governmental control of public opinion, though by creating standardless discretion in enforcement, which "raise[s] the same concerns as do content-based laws: the danger of improver motive."[222] Both mechanisms allow the state to "advance its own vision of ideological balance"—one through blanket prohibition of viewpoint discrimination, the other through case-by-case determinations of policy consistency.

Turner is instructive again. Scholars have analogized such a viewpoint neutrality requirement for content moderation to common carriage and the must-carry obligation for cable operators in *Turner*. Understanding *Moody*, however, requires appreciating the differences between them. Both the must-carry, ultimately validated in Turner, and the common carriage hypothesized by the dissenting bloc operate against the background of cable transmission, which organizes the offerings of both cable programmers and local TV broadcasters. The neutrality imposed on cable operators in both schemes still allows for viewpoint discrimination by cable programmers and TV broadcasters—as well as by viewers, a point which the Court seized on.[223] The view-

[218] *Cf.* Douek & Lakier, *supra* note 10, at 139 (hypothesizing "that the Court might find laws that interfere with content moderation in much the same way as the Texas and Florida laws but that are motivated by a different purpose to be content-neutral").

[219] W. Va. State Bd. of Educ. v. Barnette, 319 U.S. 624, 641 (1943).

[220] Moody v. NetChoice, LLC, 144 S.Ct. 2383, 2409 (2024).

[221] *See* Artur Pericles L. Monteiro, *Platform Federalism: How to Countevail Platform Power*, 41 BERKELEY TECH. L.J. (forthcoming 2026) (manuscript at 20–24) (on file with the author); *cf.* Frederick F. Schauer, Hudgens v. NLRB *and the Problem of State Action in First Amendment Adjudication*, 61 MINN. L. REV. 433, 450 (1977); Julian N. Eule & Jonathan D. Varat, *Transporting First Amendment Norms to the Private Sector: With Every Wish There Comes a Curse*, 45 UCLA L. REV. 1537, 1606 (1998).

[222] Kagan, *supra* note 9, at 457. *Cf.* Saia v. New York, 334 U.S. 558 (1948). *See supra* Section III.B.

[223] *See*, *e.g.*, Turner Broad. Sys. Inc. v. FCC (*Turner I*), 512 U.S. 622, 649 (1994) (noting that the purpose of the Cable Act was "to ensure that all Americans, especially those unable to subscribe to cable, have access to free television programming—whatever its content").

point neutrality requirement for content moderation enacted by Texas is not the equivalent of this for social media. The right parallel would be viewpoint neutral TV *programming*—which would obviously impair it. Neither the must-carry for local broadcasters nor common carriage suggested by the dissent in *Turner* entail a decision on behalf of the viewers that TV programming be viewpoint neutral. It is this interest in making *that* decision on behalf of users that we must understand *Moody* to have recognized as illegitimate.

CONCLUSION

The First Amendment sets power against power by enabling public discourse to pass judgment on government. Yet diffusing private actors' speaking power creates risks to the very independence of public discourse required so that "[a]uthority is to be controlled by" it.[224] Read literally and categorically, the *Buckley* principle treats any redistribution of speaking power as a government overreach that compromises the integrity of private ordering. That interpretation is untenable, and not the one that the Court's cases, properly examined, support. The cases show instead that the Court relies on *Buckley* as a proxy for neutrality; it invalidates redistribution that reveals self-dealing or favoritism toward its beneficiaries (or obscures such factors), and upholds it when the virtues of generality allay those concerns.

Diffusing platform power must preserve the independence of the public sphere. Platform interoperability satisfies this requirement when it enacts redistribution that relies on the virtues of generality and does not allow for government favoritism or hostility.

Dear Editors,

I am pleased to submit the enclosed abstract, "Platform Interoperability and the First Amendment," for your consideration.

The project examines whether interoperability mandates for social media platforms can survive First Amendment scrutiny after *Moody v. NetChoice*. It argues that structural regulation aimed at diffusing communicative power, while avoiding favoritism, hostility, and self-dealing, should be understood as constitutionally distinct from the forms of speech redistribution that cases like *Buckley* treat with suspicion.

I would be grateful for the opportunity to have the abstract considered, and I would be happy to provide any additional materials upon request.

[224] W. Va. State Bd. of Educ. v. Barnette, 319 U.S. 624, 641 (1943).